

**The Invention of the Person:
A Genealogy of Stratified Personhood**

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Abstract

The modern Person, the autonomous, rational, rights-bearing individual, is treated in contemporary political and moral thought as a natural category. The argument here treats it as a stratification: a composite assembled over millennia from at least five distinct historical formations. The paper traces those formations in sequence: relational personhood rooted in kinship, ritual, and animism; epic singularization in the narratives of Gilgamesh and Odysseus; juridical personhood as developed in Roman law; interior moral personhood through the innovations of Paul, Augustine, and Boethius; and the autonomous rational subject consolidated by Locke and Kant. Each layer was built by specific institutions to answer specific problems: who may be recognized, who may hold property, who stands answerable before God, who generates moral law from within. The modern individual emerges only when these layers collapse together and are retroactively treated as a single thing. The paper then follows the socialization of this figure through Hegel's theory of recognition and its historicization through Foucault's genealogy of the subject. The final sections examine the contemporary forces that are thinning the practical conditions of agency, including platform capitalism, algorithmic management, the expansion of legal personhood to non-human entities, and neurotechnology, all while leaving formal personhood intact. The central claim is that personhood, having been assembled, can also be disassembled, and that this disassembly proceeds today through the hollowing of institutional supports rather than the erasure of the legal category.

1. Introduction

There is a figure at the center of modern political, legal, and moral thought. We call it the Person. It governs itself. It can deliberate, reflect, and choose. It bears rights that others must respect. It persists over time as the same self that acted yesterday and will act tomorrow. It has a conscience, a will, motives that matter independently of outward behavior. And it is, in principle, universal: every human being is supposed to be one.

This figure is so familiar, so deeply embedded in our legal codes and political arguments and everyday speech, that it looks natural, as though it were simply what humans are. The genealogy presented here pulls the figure apart. What we call the Person is the result of a long series of inventions, produced in different centuries and different institutional contexts, each answering a different question, and later fused into a single composite that gets treated as if it had always been one thing.

Consider how different the components actually are. In kinship societies, stretching back into deep prehistory, a person is a node in a web of relations: constituted by kin obligations, ritual participation, shared substance. To be a person is to be properly embedded. A few millennia later, the great epics give us something new: the singular hero, Gilgamesh, Odysseus, a being with a name, a story, a fate that can be told. This heroic individual is different from the relational person of kinship. The hero stands out from the collective; the kin-embedded person *is* the collective. Then Rome adds another layer entirely. Roman law creates the *persona* as a formal legal category: someone who can own property, enter contracts, sue and be sued. The Roman *persona* is a bureaucratic

technology for organizing liability, free of debts to heroic narrative or kinship obligation. Christianity then introduces yet another dimension. Paul and Augustine place a conscience inside each person, an inner witness that weighs intentions and desires. Now the person has depth, an interior life that matters before God regardless of social position or legal standing. And finally Kant compresses all of these into a single philosophical architecture: the rational autonomous subject who is simultaneously the condition of experience and the source of moral law.

Each of these constructions was produced in a specific place, by specific institutions, to solve specific problems. The kinship person solved the problem of social coordination in small groups. The epic hero solved the problem of making memorable lives narratable. The Roman *persona* solved the problem of legal attribution in a complex empire. The Christian conscience solved the problem of moral responsibility before a universal God. The Kantian subject solved the problem of grounding knowledge and morality after the collapse of traditional authority.

When we say “person” today we are saying all five of these things at once, usually without realizing it. The purpose of this paper is to pull the layers apart, to show where each one came from and what it was for, and then to ask what happens to the composite when its institutional supports are withdrawn. The paper’s thesis: the Person was assembled in layers, and what was assembled can be disassembled, layer by layer.

2. Layer One: Relational Personhood

2.1 The Dividual

The oldest available evidence about human selfhood, drawn from both archaeology and ethnography, suggests that the modern bounded individual is a late development. For most of human history, and in many societies today, personhood has been relational, distributed, and achieved through social participation rather than given at birth as an inherent property.

Chris Fowler, synthesizing decades of archaeological and anthropological work, puts it this way: “Persons are constituted through relationships not only with other human beings but with things, places, animals and the spiritual features of the cosmos.” In this model, identity is fluid. People pass through stages of personhood in life and even after death. The boundaries between human and non-human are often porous: animals, objects, ancestors, and spirits may all be treated as persons in some societies, while living humans may not yet count as full persons until they have been ritually integrated.

Melanesian ethnography has produced the most fully developed theoretical framework for understanding this kind of selfhood. Marilyn Strathern’s concept of the “dividual” describes persons who are composed of the relations they participate in. A Melanesian person, in this account, is not a bounded container holding an inner self. The person is instead a composite of substances, names, obligations, and gifts that flow through social networks. A piece of you belongs to your mother’s clan; another piece belongs to your exchange partner; another was deposited in you through ritual. You are, literally, made of your relations.

This has practical consequences. A newborn in many such societies is not yet a full person. Personhood is something that must be achieved, through naming ceremonies, through the accumulation of social debts and credits, through being recognized by elders and integrated into the kinship system. Someone who dies without proper burial rites may lose their personhood, becoming a dangerous ghost rather than a respected ancestor. Personhood is a status that the community confers and that the community can, under certain conditions, withdraw.

The anthropological literature treats this as a different answer to the same question, equal in coherence to the modern Western one. The modern West locates personhood inside the individual, as an inherent property of the biological organism. Relational societies locate it in the space between people. Both answers work. They produce different kinds of social organization, different kinds of moral reasoning, different kinds of vulnerability. The relational person is exposed to social exclusion. The bounded individual is exposed to isolation and anomie. Each form trades one kind of fragility for another.

2.2 Proto-Personhood in Deep Time

Direct evidence from early hominins is scarce, but a few traces survive. Deliberate burials and grave goods, attested among both Neanderthals and early *Homo sapiens*, hint at symbolic thought and some notion of an afterlife or persistent identity. The discovery that *Homo naledi* practiced intentional interment has pushed these questions further back in time and reinvigorated debates about the cognitive and moral status of extinct human relatives.

Whether any of these hominins held a concept of “self” resembling ours is impossible to determine from the archaeological record. What seems more plausible is that they possessed a form of rudimentary self-awareness embedded in small social groups, a sense of being-with-others that had not yet crystallized into the sharp boundary between self and world that later formations would construct. The self, at this depth, may have been more like a social position than an inner substance.

2.3 The Contribution of This Layer

Relational personhood establishes the oldest stratum: the self as embedded in kinship, ritual, exchange, and cosmic order. It does not produce the modern individual. But it poses the question that all subsequent layers will try to answer in their own ways: what makes someone count as a person, and who has the authority to decide?

This question has never been settled permanently. Every subsequent layer of personhood is a new attempt at an answer, produced under new institutional pressures. The relational layer persists beneath all of them, never fully replaced, surfacing in phenomena like group identity, social recognition, the desire to belong, and the pain of exclusion.

3. Layer Two: Epic Singularization

3.1 Enkidu: Becoming Human

The earliest surviving literary epics do something unprecedented: they dramatize the process of becoming a person as a movement from nature into culture, from wildness into social life.

In the *Epic of Gilgamesh*, composed in various forms from roughly 2100 BCE onward, the figure of Enkidu embodies this transition. Enkidu begins as a wild creature, living among animals, drinking at their watering holes, knowing nothing of human society. He is then brought into the human world through a specific sequence: sexual initiation with Shamhat, the temple prostitute; the wearing of clothes; the eating of bread and the drinking of beer; entry into the city of Uruk; and, most importantly, friendship with Gilgamesh. Only after all of these does Enkidu count as human.

The sequence matters. Personhood in *Gilgamesh* is social integration. Each step draws Enkidu further from the animal world and deeper into the web of human obligations, pleasures, and limitations. He gains language, companionship, grief, and eventually death. The poem does not treat any of this as automatic. Enkidu's personhood is achieved, step by step, through encounters with other people and with the institutions of civilization. Tzvi Abusch reads *Gilgamesh* himself as "assembled from multiple identities," part man, part hero, part king, part god, with the poem staging a long conflict between heroic excess and the limits that mortality and communal life impose on even the most powerful individual.

3.2 Odysseus: Identity Under Disguise

The *Odyssey*, composed in the 8th century BCE, introduces a different problem. Where *Gilgamesh* is about becoming a person, the *Odyssey* is about remaining one. Odysseus spends twenty years away from home, much of that time in disguise or in places where no one knows who he is. The central question of the poem is whether he can return and be recognized as himself.

The recognition scenes are the poem's great technology of personhood. Odysseus's old nurse Eurykleia sees a scar on his leg and knows him. His dog Argos recognizes his master after twenty years and dies. Penelope tests him with a shared secret about their marriage bed. In each case, identity is established through tokens: a physical mark, a piece of knowledge, a shared history. "Symbolically," as one scholar puts it, "all people are recognized by the scars they have incurred during life."

This is a sophisticated model of what it means to be a person. Identity in the *Odyssey* is relational, in the sense that it requires another person to confirm it, but it is also singular, because it attaches to one specific individual with one specific history. Odysseus is not interchangeable with anyone else. His scar, his bed, his dog, his marriage are *his*. The poem insists that personhood is a matter of particular biography, that there is something it is to be *this* person and no other.

The older Bruno Snell thesis that Homeric people lacked any unified self has been largely abandoned by classicists. Joseph Russo argued that Snell's contention was "fundamentally misguided,"

though he acknowledged that Homeric psychology differs from later Greek thought. What remains valuable in the *Odyssey* for our purposes is the literary technology it develops: the fake autobiography, the strategic concealment of identity, the recognition token, the persistent question of how the same person remains himself across altered circumstances and radically different social contexts.

3.3 The Contribution of This Layer

Epic singularization contributes the named, narratable individual: a being with a story, a fate, a trajectory through time that can be told and retold. The epic person is recognizable, memorable, and distinct from others in ways that the relational person of kinship societies need not be. This layer establishes the idea that personhood involves a singular life course, one that can be tested, lost, and recovered.

The epic hero has neither legal standing in the Roman sense nor inner conscience in the Augustinian sense. The hero has a name, a story, and the possibility of being recognized by those who knew him. This turns out to be a surprisingly durable contribution. Much of what we mean by “identity” in ordinary speech, the feeling of being a specific someone with a specific past, owes more to this epic layer than to Kant or to Roman law.

4. Layer Three: Juridical Personhood

4.1 Roman *Persona*

The Romans produced something that neither kinship societies nor epic poets had attempted: a formal, institutional technology for assigning personhood as a legal status. The concept of *persona* in Roman law refers to a being who can bear rights and obligations within a legal system. It is defined by capacity, not by inner life or narrative identity.

The jurist Gaius, writing in the 2nd century CE, organized the entire law around a threefold division: “The whole of the law which we use relates either to persons or to things or to actions.” His *Institutes*, which became a foundational text of European legal education, classify all humans under the “law of persons,” organized primarily by the distinction between free and slave: “the primary distinction in the law of persons is that all men are either free or slaves.”

This sounds blunt, and it is. But the conceptual innovation is enormous. Gaius is saying that personhood is a *legal category*, a matter of status within an institutional system. Whether you count as a person depends on whether the law recognizes you as one. A slave is biologically human. A slave can think, feel, suffer, and reason. But a slave is, for most legal purposes, a *res*, a thing, an item of property. A free citizen of Rome is a person with full *status capitis*. A foreigner has partial standing. A woman has standing that is constrained in specific ways. The *paterfamilias*, the male head of household, holds power over his children and slaves that is itself a form of legal personhood, a node of authority within the legal order.

What Rome contributes, then, is the idea that personhood is an institutional fact. It answers a

specific question: who counts, within this legal order, as a bearer of rights and obligations? The answer can include or exclude whoever the legal system decides. The category of “person” can be broader than the category of “human” (Roman law recognized certain collective entities) and narrower than “human” (slaves were human but not fully persons). This flexibility is both the power and the danger of juridical personhood. It makes formal legal equality possible. It also makes formal legal exclusion possible. The same technology that eventually produced the Declaration of the Rights of Man also produced the legal infrastructure of slavery.

4.2 The Contribution of This Layer

Juridical personhood contributes the formal infrastructure of imputability: the capacity to own, bind, sue, be sued, inherit, and be held answerable. It makes personhood depend on institutional criteria set by a political authority. And it introduces a feature that would prove permanently destabilizing: the category of “person” can be detached from the category of “human being” and assigned, expanded, or contracted by whoever controls the legal system.

This is the layer that contemporary debates about corporate personhood, animal rights, and AI legal status are operating on. They are all arguments about where to draw the boundary of the Roman *persona*, conducted in institutions that are direct descendants of the Roman legal tradition.

5. Layer Four: Interior Moral Personhood

5.1 Paul and the Inner Witness

The Christian transformation of personhood may be the most consequential single development in this genealogy. It added an entirely new dimension: depth.

Before Paul, morality in the Greco-Roman world was largely a matter of action, character, and social reputation. Aristotle’s ethics is about habituation, virtue, and the good life lived in community. Guilt, in the Greek tragic tradition, attaches to what you did, even inadvertently. Oedipus is guilty because he killed his father and married his mother, regardless of his intentions or knowledge.

Paul of Tarsus introduced something different. In his letters, Paul described a law written on the heart, a conscience that serves as an inner witness. The Epistle to the Romans places moral judgment inside each person: even Gentiles, who do not have the Mosaic law, “show that the requirements of the law are written on their hearts, their consciences also bearing witness.” This is a momentous shift. Morality is no longer primarily about what you do in public. It is about what happens inside you. Your intentions, desires, and inner consent become morally relevant in a way they had not been before.

5.2 Augustine and the Divided Will

Augustine of Hippo, writing in the 5th century, radicalized Paul’s inwardness into a fully developed moral psychology. The *Confessions* are, among other things, a sustained investigation of the inner life: the structure of memory, the experience of time, the phenomenon of conflicting desires.

Augustine discovered, or constructed, the divided will: the experience of simultaneously wanting and not wanting, of being pulled in two directions by desires that cannot be reconciled through reason alone.

This matters for personhood because it locates moral responsibility at a level deeper than action or even deliberation. For Augustine, sin is ultimately in the will's orientation, in what the self loves and consents to. A person can perform the right action for the wrong reason and still be guilty before God. Conversely, a person can fail to act rightly out of weakness while genuinely willing the good, and this too has moral significance. The interior theater of guilt, confession, desire, and self-scrutiny that Augustine constructs would shape Western subjectivity for the next fifteen centuries. The Catholic confessional, Protestant self-examination, psychoanalysis, and the modern therapeutic culture are all, in different ways, descendants of Augustine's innovation.

What Augustine adds to personhood is depth. Before Augustine, a person might be a kin-embedded node, a narratable hero, a legal status-holder, or a rational substance. After Augustine, a person is also an interior space where moral dramas unfold invisibly, where the real battle between good and evil takes place, and where the truth about the self is located. This interior is what makes confession possible, and also what makes it necessary.

5.3 Boethius and the Metaphysical Definition

Boethius, writing in the early 6th century, gave the definition of "person" that medieval philosophy would inherit: *naturae rationalis individua substantia*, "an individual substance of a rational nature." The phrase is dense but precise. It claims that a person is metaphysically individual (this particular being, not a member of a class), that a person is a substance (something that exists in its own right, not a property of something else), and that a person is rational (capable of thought, judgment, and deliberation).

Boethius formulated this definition in the context of Christological debates about the persons of the Trinity. But its influence extended far beyond theology. Thomas Aquinas adopted it, situating the Boethian person within his hylomorphic metaphysics as a soul-body composite: rational, embodied, and answerable to God. The effect was to give "person" a metaphysical weight that it had not carried in Roman law. A *persona* in Roman law is a legal role. A person in Boethian metaphysics is a *kind of being*. The category moved from the courtroom to the structure of reality.

5.4 The Contribution of This Layer

Interior moral personhood adds something that none of the previous layers provided: an inner life that matters. The relational person is constituted from outside, through social ties. The epic hero is recognizable from outside, through tokens and stories. The legal person exists within external institutional structures. But the Augustinian person has an inside, a private theater where desires conflict, where conscience speaks, and where moral truth is located independently of what anyone else can see or judge.

This layer makes confession possible, but it also makes surveillance desirable. If the truth about a

person lies hidden inside them, then the institutions that want to know that truth, the Church, the state, the therapeutic profession, the data platform, will develop ever more sophisticated technologies for accessing the interior. The history of confession, interrogation, psychological testing, and behavioral analytics is, in this light, a history of attempts to reach the space that Augustine opened up.

6. Layer Five: The Autonomous Rational Subject

6.1 Descartes and the Thinking Substance

Before Locke and Kant can complete the construction, Descartes must be mentioned. His *cogito ergo sum* places the thinking self at the foundation of all knowledge. For Descartes, the one thing you cannot doubt is that you are thinking. The self becomes a thinking substance, a *res cogitans*, fundamentally different from the extended material world. Descartes does not use the word “person” in his most influential arguments, but he establishes the modern equation between selfhood and consciousness that Locke will exploit.

6.2 Locke: Person as Forensic Term

John Locke, writing at the end of the 17th century, reframes the person in psychological and legal terms simultaneously. A person, Locke says, is “a thinking, intelligent Being, that has reason and reflection, and can consider itself as itself, the same thinking thing in different times and places.” This looks like a psychological definition, and it is. But Locke immediately adds that “person” is a *forensic term*: “appropriating actions and their merit; and so belongs only to intelligent agents, capable of a law, and happiness, and misery.”

The word “forensic” is crucial. It means that the concept of personhood exists for the purpose of attribution. We need “person” as a category because we need to be able to say: this individual did this thing, and is responsible for it, and can be rewarded or punished accordingly. Personal identity across time, for Locke, is continuity of consciousness, specifically of memory. You are the same person who committed the crime last year because you can remember committing it (or at least remember being the kind of being who could have committed it). If you genuinely cannot remember, if consciousness is completely discontinuous, then in Locke’s view there is a real question about whether you are the same person.

This is an extraordinarily practical conception. It detaches personhood from the soul (Locke explicitly argues that personal identity does not depend on substance, whether material or immaterial) and attaches it to the continuity of self-awareness over time. A person is whatever can reflectively appropriate its own past actions and be held accountable for them.

6.3 Hume’s Challenge

David Hume, a generation after Locke, blew a hole in the entire project. Looking inward for the self, Hume reported finding nothing: “I never can catch myself at any time without a perception, and

never can observe anything but the perception." The self, in Hume's famous phrase, is a "bundle of perceptions," a stream of experiences with no underlying substance holding them together. If Hume is right, then the unified, continuous person that Locke describes is a fiction, a convenient habit of the mind rather than a real entity.

This created a crisis. The legal and moral systems of modern Europe required a stable, continuous person who could be held responsible across time. Hume's empiricism threatened to dissolve that person into a flickering sequence of impressions. Kant's intervention must be understood as a response to this crisis.

6.4 Kant: The Great Assembler

Kant, writing in the late 18th century, resolved the crisis by changing the question. He conceded that the self cannot be found as an object of experience (Hume was right about that). But Kant argued that the self is presupposed as a *condition* of experience. The "I think" must be able to accompany all my representations; without a unified subject, there would be no experience at all, just unconnected sensory fragments. The self is therefore not an empirical discovery. It is a transcendental requirement.

On the moral side, Kant performed an equally powerful synthesis. Every rational being, Kant argued, must be regarded as an end in itself, never merely as a means to someone else's purposes. The source of this dignity is rational autonomy: the capacity to give oneself moral law. The person is an autonomous law-giver. Moral law does not come from God, or from the state, or from tradition. It comes from the rational will itself, legislating universally.

What Kant accomplishes is the most comprehensive assembly of personhood in the Western tradition. The Boethian "individual substance of a rational nature" is preserved: the person is metaphysically real. The Lockean forensic person is preserved: the person is accountable across time. The Augustinian interior is preserved: the person has a moral will that matters. And to all of this Kant adds universality and autonomy: every rational being has equal dignity, and moral law is generated from within.

This is the figure that modernity inherits. When we say that every human being has inherent dignity and inalienable rights, we are speaking Kantian language, whether we know it or not. The five layers of personhood have been compressed into a single architecture and declared to be the essence of what it means to be human.

6.5 The Contribution of This Layer

The autonomous rational subject contributes universality and self-legislation. Every rational being has equal dignity. Moral authority is internal, generated by the rational will rather than imposed by external power. This is the capstone of the stratification, the moment when all previous layers are declared to be aspects of a single figure. It is also the most vulnerable layer, because it depends on all the others while claiming to need none of them.

7. Socialization and Historicization

7.1 Hegel: The Self Needs Others

Almost immediately after Kant, Hegel showed that the autonomous subject cannot stand alone. Self-consciousness, Hegel argued, does not arise in isolation. It requires mutual recognition: my freedom becomes real only when another free being acknowledges it. The famous master-slave dialectic in the *Phenomenology of Spirit* demonstrates this with disturbing clarity. The master achieves dominance over the slave but, in doing so, destroys the possibility of genuine recognition, because a slave's acknowledgment is worthless precisely because it is coerced. True recognition requires equality, and equality requires institutions.

In the *Philosophy of Right*, Hegel worked out what those institutions look like. He described three spheres, family, civil society, and the state, which together constitute what he called *Sittlichkeit*, ethical life. The family provides love and intimate recognition. Civil society provides economic interaction and the recognition of needs and labor. The state provides legal and political recognition as a citizen. Only within this institutional framework can personhood be fully realized. The lone Kantian subject, legislating moral law in the privacy of its own reason, is an abstraction. Real personhood is social, institutional, and historical.

Hegel's contribution is to show that the Kantian person, far from being self-sufficient, depends on specific social conditions for its existence. Remove the institutions that enable mutual recognition and personhood thins, even if the individual biological organism remains intact.

7.2 Foucault: The Subject as Product

Michel Foucault, writing in the second half of the 20th century, pushed the genealogy one step further. For Foucault, the modern subject is produced by power. The autonomous individual of Enlightenment thought is the outcome, he argued, of specific historical arrangements: disciplinary institutions (prisons, schools, hospitals, barracks), administrative techniques (record-keeping, examination, classification), and biopolitical regimes that manage populations rather than merely ruling territories.

Foucault distinguished between older forms of power, where the sovereign's authority was exercised through spectacular punishment and the right to kill, and modern biopower, which "endeavors to administer, optimize, and multiply life, subjecting it to precise controls and comprehensive regulations." Under biopower, the state does not merely forbid or command. It manages. It produces norms, measures deviations, administers populations, and creates the categories through which individuals understand themselves.

The genealogical claim: the Person was manufactured by institutions and then attributed to nature. The rational, autonomous, self-knowing individual that Kant describes is itself a historical product of the disciplinary and administrative practices that emerged in early modern Europe. The Person is a construction, in the strong sense, requiring specific institutional conditions to come into existence and the continuation of those conditions to survive.

Foucault's later work complicated this picture. In his final lectures and writings on the "care of the self," he acknowledged that subjects participate in practices of self-formation, *techniques du soi*, through which they shape themselves within and sometimes against the systems that constitute them. Personhood, in this later Foucault, is a site of struggle.

7.3 The Full Arc

The genealogy can now be summarized as a sequence of layers, each adding to the previous ones:

relational embedding (kinship, ritual) → **narrative singularity** (epic) → **legal status** (Rome) → **inner conscience** (Paul, Augustine) → **metaphysical substance** (Boethius, Aquinas) → **self-conscious continuity** (Locke) → **transcendental autonomy** (Kant) → **social recognition** (Hegel) → **historical production** (Foucault)

Each step adds a layer without fully replacing the previous ones. The modern Person carries all of them simultaneously. This is the source of the concept's richness, and also of its fragility. Remove the institutional support for any single layer and the composite begins to thin.

8. The Contemporary Thinning

8.1 Formal Personhood, Hollowed Agency

The question now is what happens to this composite under contemporary conditions. Personhood is being thinned. The formal category persists. Legal personhood has in fact expanded, covering more entities than ever before. But the practical conditions that give personhood its substance, bargaining power, privacy, the ability to contest decisions, access to meaningful political participation, control over one's own attention and information environment, are being eroded for large portions of the population while being concentrated in a small one.

The shape of the problem differs from the historical exclusions earlier critics identified. The 19th-century problem was that many categories of people, women, colonized peoples, the propertyless, were shut out from formal personhood. The 21st-century problem sits one layer deeper. Almost everyone is formally included. Almost everyone has, on paper, the rights and dignities of a person. The thinning happens elsewhere: in the practical capacity to exercise those rights, to make choices that are genuinely one's own, to contest the systems that classify and manage one's life.

A worker whose schedule is set by an algorithm they cannot see or appeal has formal personhood. A citizen whose political influence is negligible compared to that of a billionaire has formal personhood. A user whose attention is shaped by recommendation engines optimized for engagement has formal personhood. In each case, the Kantian shell, equal dignity, inherent rights, rational autonomy, is intact. What has been withdrawn is the practical infrastructure that makes these things real.

8.2 Two Grades of Personhood

The result is a society with two functional grades of personhood, which can be described as *profiled* and *infrastructural*.

The profiled human is measured, predicted, segmented, and steered. Their choices remain formally free. No one forces them to click, buy, vote, or behave in any particular way. But the environment in which they make choices has been engineered, by people and systems they do not control and often cannot identify, to produce predictable outcomes. Algorithmic management in workplaces evaluates, schedules, and disciplines through systems whose logic is opaque. Content recommendation selects the information environment. Credit scoring determines access to housing and finance. Each of these systems operates on the profiled human from outside, shaping the conditions of choice without abolishing choice itself.

The infrastructural human, by contrast, is the one who builds, owns, or controls these systems. They own the platforms, the compute, the data pipelines, the networks, the legal teams, the political access. Their agency is amplified by the very systems that constrain everyone else. They do not merely live within decision architectures. They design them.

This asymmetry is a difference in kind, not degree. Both the profiled and the infrastructural human are legal persons. Both have rights. Both can, in principle, go to court. The practical substance of their personhood is radically different. One is the subject of systems; the other is the author.

The genealogy explains why this situation is so difficult to name. Because all five layers of personhood are formally preserved, because the legal category is intact, because autonomy and dignity are still proclaimed, the thinning is invisible to the vocabulary we have inherited. The language of rights, autonomy, and dignity was built for a world in which the main threat to personhood was exclusion from the category. It is poorly equipped for a world in which the main threat is the emptying of the category from within.

8.3 The Epistemic Dimension

The thinning of personhood has an epistemic dimension that connects to the framework of *epistemic lensing*. Each historical layer of personhood was produced through specific mediating channels. Ritual, epic, law, theology, and philosophy are all, among other things, information channels. They transmit a particular picture of what a person is, and in transmitting it, they help bring into existence the kind of person they describe.

The five layers of personhood are, in this view, five successive epistemic-lensing regimes. Each one shaped the believing agent, bending the structure of the self rather than merely bending belief about the world. Ritual produces kin-embedded persons. Epic produces narratable heroes. Law produces legal subjects. Theology produces guilty consciences. Philosophy produces autonomous reasoners. In each case, the channel does more than inform. It constitutes.

Contemporary platform capitalism introduces a new regime, one in which the channel, the algorithmic feed, the recommendation engine, the behavioral nudge, determines something more

fundamental than what the agent believes. It shapes whether the agent is the kind of thing that deliberates at all, or the kind of thing that is optimized. The channel moves from bending reality as it arrives at the agent to bending the agent itself.

8.4 The Expansion of Legal Personhood

Meanwhile, the legal category of “person” has been expanding in ways that are revealing about the concept’s nature. Corporations have held personhood for centuries. In recent decades, rivers and forests have been granted legal personality in some jurisdictions, including New Zealand and Ecuador. AI systems, particularly as they develop capacities for planning, learning, and generating language, are beginning to provoke questions about whether some form of legal recognition is appropriate or inevitable.

This expansion confirms the genealogy’s central claim. Legal personhood was never a natural kind. It was always an institutional assignment, a decision made by a political authority about who or what would count as a bearer of rights and obligations. The expansion to non-human entities makes this visible in a way that is uncomfortable, because it reveals that the category we thought tracked something deep and essential about human nature actually tracks a political choice about institutional inclusion.

The expansion also thins the concept. The more heterogeneous the set of entities that count as persons, the less the category tells you about any particular one of them. A world in which a human being, a corporation, a river, and an AI system are all “persons” is a world in which the word “person” has become very general, too general, perhaps, to do the moral and political work that the Kantian synthesis assigned to it.

8.5 Neurotechnology and the Fragmented Self

Neuroscience has added another source of destabilization. Research over the past several decades has shown that the brain’s sense of unified selfhood can be disrupted, fragmented, or altered through injury, drugs, electrical stimulation, and disease. Split-brain patients exhibit behaviors suggesting two centers of experience within a single skull. Dissociative identity disorder demonstrates that a single brain can generate multiple distinct personality states. Psychedelic research has shown that the sense of self can be temporarily dissolved and reconstituted.

If consciousness is a pattern instantiated in a physical substrate, then in principle that pattern can be split, copied, or migrated. The question of personhood then separates from the question of biological humanity. An uploaded mind, if such a thing becomes possible, would satisfy the Lockean criterion of continuity of consciousness. A sufficiently sophisticated AI system might satisfy the Boethian criterion of rational individuality. A brain organoid grown in a laboratory satisfies none of the epic, juridical, or theological criteria, but it raises the question of moral status in terms that the existing framework struggles to answer.

The five-layer genealogy explains why these prospects feel so destabilizing. We have been operating on the implicit assumption that all five layers of personhood necessarily co-occur in the same

entity: one body, one name, one legal status, one conscience, one rational will. Neurotechnology threatens to decouple them. A single body might house multiple persons. A single person might be instantiated in multiple bodies. Personhood might become, in a word, modular, composed of detachable components that can be distributed across different substrates and recombined in novel ways.

9. Conclusion

The modern Person is a composite. Its oldest strata are communal and role-based: the self embedded in kinship, ritual, and cosmic order. Over time these were supplemented by epic individuality, legal standing, inner conscience, metaphysical substance, and rational autonomy. When all of these layers collapse together, when a single being has a name, a story, a legal status, an answerable conscience, and a self-legislating will, then and only then does the contemporary Person appear.

The genealogy presented here has tried to show that this collapsing-together was a historical process, carried out by specific institutions for specific purposes over several thousand years. The Person was stratified, layer by layer. And what was stratified can be de-stratified, layer by layer, if the institutional conditions that support each layer are withdrawn or transformed.

The contemporary thinning of personhood proceeds along exactly these lines. Formal legal personhood is intact and even expanding. But the practical substance of agency, the capacity to deliberate, to contest, to shape the conditions of one's own life, is being drained for large populations while being concentrated in a small one. The epistemic channels through which persons once formed themselves, ritual, narrative, law, theology, philosophy, are being supplemented and in some cases replaced by algorithmic systems that optimize behavior without producing agents. The result is a society in which everyone is a person on paper and fewer people are persons in practice.

The genealogy suggests that defending personhood requires understanding what it is made of. It is made of institutional supports: kinship structures that embed, narratives that singularize, legal systems that recognize, moral traditions that deepen, philosophical frameworks that universalize, and political institutions that enable mutual recognition. Each of these can be strengthened or weakened. Each of these is currently under pressure. The political question of the present is whether the practical substance of personhood will survive the systems that have learned to manage persons without abolishing them.

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